

March 15, 2025

Attn: Faisal D'Souza,
National Coordination Office (NCO)
National Science Foundation
2415 Eisenhower Avenue,
Alexandria, VA 22314

Submitted Electronically

Re: Request for Information on the Development of an Artificial Intelligence (AI) Action Plan [FR Doc. 2025-02305 Filed 2-5-25; 8:45 am] BILLING CODE 7555-01-P

Dear Mr. D'Souza,

We appreciate the opportunity to provide our feedback and recommendations regarding your Agency's efforts governing the use of Artificial Intelligence (AI). We have specifically provided information we feel is relevant to the suggested AI policy topics related to appropriate use and governance of AI in healthcare. We thank the Trump Administration for its focus and attention to this critical and emerging issue.

About Advocate Health

Advocate Health is a not-for-profit integrated delivery system and leading employer in the Midwest and Southeastern United States. Headquartered in Charlotte, North Carolina, Advocate Health serves approximately six million patients and is engaged in hundreds of clinical trials and research studies. It is nationally recognized for its expertise in cardiology, neuroscience, oncology, pediatrics, and rehabilitation, as well as organ transplants, burn treatments, and specialized musculoskeletal programs. Advocate Health employs an estimated 162,000 team members across 69 hospitals and more than 1,000 care locations and offers one of the nation's largest graduate medical education programs with more than 2,000 residents and fellows across more than 200 programs. Additionally, Advocate has five skilled nursing facilities with 572 licensed beds. Committed to ensuring access to care for all, Advocate Health provides more than \$6 billion in annual community benefits.

AI Benefits and Opportunities in Healthcare

AI technology is rapidly progressing, and we believe it will radically transform healthcare over the coming years. Specifically, we believe there is significant potential for AI to reduce administrative inefficiencies for physicians and administrators, as well as unlock previously unavailable actionable insights from our vast data. In addition to improved efficiency, as the

technology advances AI will have profound effects on improving patient and provider experience with care and driving improved outcomes. Within Advocate Health, we are already seeing these benefits with AI integrated within many of our operations, guiding patient engagement, and with a growing presence in the interface of patient care.

At the core of harnessing these benefits, is our belief that healthcare must lead in guiding the responsible development and adoption of AI. Integrated, large systems, like Advocate Health, are uniquely positioned to evaluate the performance, equity, and safety of healthcare focused AI solutions both as pilots and at scale across diverse settings and conditions. With such a large diverse scale, we then are able to disseminate best practice both internally and beyond to other health systems, disseminating best practices to others within the healthcare system.

Advocate Health Approach to Responsible AI

At Advocate Health, we believe a robust, yet flexible governance framework is paramount to ensure the appropriate adoption of AI while enabling bold innovation. As technology rapidly advances, the enthusiasm to adopt new AI solutions in healthcare must be balanced with the crucial need for rigorous evaluation that addresses the unique risks inherent to healthcare AI. Our Enterprise Artificial Intelligence Governance Subcommittee which is comprised of leaders across our organization including from our patient safety, health equity, ethics, clinical operations, information technology, data science, research, and digital innovation work in concert to maintain robust AI governance, guided by four core principles, ensuring AI is: **(1) equitable and ethical; (2) valid and reliable; (3) transparent; and (4) impactful.**

The four core principles allow Advocate Health to address many risks specific to AI in healthcare, such as data quality, evolving healthcare practices, liability, workflow challenges, transparency, and cost. We have used these core principles to structure a fourpronged approach to AI strategy:

1. We believe that comprehensive changes in healthcare will occur through the use of AI, but progress will be uneven. There is no single solution for all problems; no single moon shot. Some AI will be successful, and some will not. Therefore, as technology continues to advance, we must continuously pursue and test **multiple use cases, while determining how they seamlessly connect for our patients and providers to harness the collective benefit.**
2. We believe that healthcare requires the highest standards of security, privacy, transparency, validity, and evaluation for bias. There will continue to be technology issues, such as drift and hallucinations, for the foreseeable future. Therefore, healthcare systems like ours must have strong **data science expertise** leading effective governance of review prior to implementation and ongoing vigilance after implementation. The local context of data and unique deployment workflows require this governance to be localized and, while tightly integrated, cannot depend only on centralized regulation. But to be effective, large health

systems cannot be hampered by differing state regulations. This will create an unnecessary administrative burden and result in withholding care innovations or patchwork implementation.

3. We believe that the high cost of tools will require industry collaboration, rigorous evaluation of costs and benefits and rapid dissemination of best practices. In the absence of such rigor, healthcare will adopt expensive technology that does not actually produce the intended outcomes; parodically leading to higher expenses and degraded population health. Therefore, we must embrace the learning health system model in conjunction with selected partners in devising a **business strategy that supports appropriate AI adoption into healthcare**. This will also require collaboration with payors to cover the added expense of AI for care delivery when it is shown to improve outcomes.

4. We believe that our patients, communities, and government agencies will be interested in our approaches to and utilization of AI. Therefore, we must have effective internal and external **communication to share lessons learned**. Transparency with patients is of paramount concern as building and maintaining their trust and understanding of new technology is vital.

We rely on robust evaluation and subject matter expertise to harness the benefits that AI solutions offer; while mitigating the unique risks it brings to healthcare. Advocate Health has demonstrated our commitment to safeguarding AI by aligning our approach to President Trump's January 2025, Executive Order entitled "REMOVING BARRIERS TO AMERICAN LEADERSHIP IN ARTIFICIAL INTELLIGENCE". The Executive Order affirms Advocate Health's strategy to define and pursue responsible AI aligned with our mission and values.

Use Cases

Advocate Health is using many forms of AI today, including neural networks and generative AI. The following are three examples of AI in use at Advocate today:

1. Our organization has one of the largest deployments nationally using computer vision (AI) to aid our radiologist in both prioritizing scans with positive finding and more accurately diagnosing conditions—for example the early identification of strokes. The AI algorithms review the images and alert the radiologist to prioritize reading the scans with potential strokes first. Our deployment of AI for strokes has taken the time for radiology to confirm a stroke diagnosis from over 25 minutes to just under 6 minutes—in a condition where time to treatment is essential. While this tool is greatly beneficial, it is an added cost to us without additional reimbursement, as noted above. In 2024 and 2025, we have expanded similar AI algorithms to many other diagnostic categories, such as mammography, fractures, aneurysm, and pulmonary embolisms.
2. Further, Advocate Health was the first health system in the nation to deploy an artificial intelligence tool designed to automate the creation of clinical documentation during

patient visits. Nuance® Dragon® Ambient eXperience™ Copilot (DAX™ Copilot) helps free clinicians to focus on delivering high-quality personalized care, improving clinical efficiency, and reducing administrative workloads associated with burnout.

The DAX Copilot allows clinicians to create draft clinical summaries automatically and securely in seconds from in-person exams or via telehealth patient conversations for immediate review and finalizing in the Electronic Health Record (EHR). Advocate clinicians are seeing modest improvements in their documentation time across the board with a subset getting substantial time back in their day. Nearly half also report improved satisfaction with their EHR interactions, representing an important step for us in preventing physician burnout. As an example of how we believe there is a responsibility to share our learnings broadly, our teams published these results in New England Journal AI and JAMA Open Network.

3. Epic Inbasket: This AI technology offered by our electronic health record vendor leverages an LLM to provide the first draft of a patient message. The physician or nurse then edits the message prior to sending to the patient, thus saving significant time incrementally. We have deployed this technology across our footprint.

Ethical Concerns and Risks

It is our belief that the highest standards of security, privacy, transparency, validity, and evaluation for bias are required in healthcare. This need for high standards combined with continuing technology issues in the near term as we navigate the multiple uses of AI (i.e. drift and hallucinations) necessitates having strong data science expertise and effective governance of use.

These standards apply not only to healthcare providers, but also to health plans, which are increasingly leveraging AI. It is critical that these AI tools and algorithms do not create new barriers to care and treatments. We continue to believe that care decisions must include individualized assessment of each patient's unique context. Overall, AI and other similar tools, must not serve as a replacement for the judgment of experienced and qualified clinicians.

As you know, some regulators have begun to tackle the issue of AI and algorithm use in health care, most recently in the Medicare Advantage (MA) program. The 2024 MA final rule¹, which went into effect on January 1, 2024, attempted to require plans to disclose their use of external coverage criteria, including AI and decision support algorithms, in a publicly accessible manner. In the same rule, the Centers for Medicare & Medicaid Services (CMS) strengthened existing requirements in the MA program that determinations regarding the medical necessity of treatment must be "based on the circumstances of the specific individual... as opposed to using an algorithm or software that doesn't account for an individual's circumstances." The rule also

clarifies that medical necessity denials must be reviewed by a physician or other appropriate health care professional with expertise in the field of medicine or health care that is appropriate for the service at issue.

We believe a key element of this rule, and one that could be further strengthened by additional regulatory or legislative action, is to ensure transparency around the use of AI tools. Stakeholders should know when AI is being used by payors to make care decisions, the basis for the AI decision-making when applicable.

Business Strategy

Ultimately, AI tools are very expensive to run, as the computing power needed is very high and highly skilled professionals are required to implement AI responsibly develop and monitor AI performance. In certain medical fields, AI is poised to become the new standard of care, with profound potential to enhance diagnostic accuracy and efficiency. Take pathology and radiology, for example: AI-driven tools have shown high levels of precision in interpreting imaging scans. However, the high cost of AI technologies limits their widespread adoption. To accelerate the integration of AI in healthcare, we advocate for the introduction of reimbursement incentives. These incentives would facilitate the broader use of AI-powered solutions in health care, ultimately accelerating diagnoses, improving patient outcomes, and transforming the future of medical care. A cost-benefit analysis must be conducted, and the cost should be at least partially covered by the party that benefits from the technology. For example, a stroke patient who receives care at an Advocate Health site benefits from AI technology, which leads to better outcomes by saving time—time that directly translates to brain tissue saved. However, another community hospital, which lacks AI technology and provides slower care, receives the same payment. Therefore, there should be reimbursement incentives in place to reward hospitals that provide better and faster care through the use of advanced technology.

Communications

Our patients and communities trust us to utilize AI responsibly. Therefore, we must have effective internal and external communication, including transparency with patients.

We recognize that the dynamics governing the use of AI in health care cross over the jurisdictions of multiple Congressional committees and federal agencies. As noted above, CMS has already begun addressing AI issues in the MA program, though much more work is required to ensure that patient access to care is not compromised. Developing a meaningful AI framework that allows these technologies to achieve real benefits for consumers while minimizing threats to safety and access will require cooperation across the federal government. At the same time, it is important to note this is a quickly evolving area, such that overly specific regulations may restrict innovation and ultimately may not be aligned with technological advances. As you continue to explore possibilities for legislation in this area, we urge you to

coordinate closely with your colleagues in Congress and the Administration to create a robust, patient-centered AI policy.

In conclusion of our comments, some additional considerations that are critical to the expansion of AI in healthcare are as follows:

- Support AI by investing in education and training programs that will increase the number of AI trained professionals.
- Further, the cyber risk related to AI is significant, as AI is enabling novel approaches and tools for hackers. The government should invest in programs and processes that stay one step ahead of and combat threat actors using AI instead of punishing and fining healthcare providers when we are the victim of a crime.
- Establish regulations that protect healthcare organizations utilizing AI without creating additional overhead or increasing liability. We strongly support the need for regulations that ensure transparency from vendors, such as implementing a standardized AI label. This would provide clarity and accountability while minimizing unnecessary burdens on healthcare providers.
- Finally, when regulating, do so carefully and revisit often—this is a very immature industry. Regulations should also ensure safe innovation.

Advocate Health thanks the Trump Administration and the National Science Foundation for taking this step to solicit opinions from the field and stands ready to provide additional information and assistance however we can. We greatly appreciate your time and attention to our feedback and look forward to working with you and your colleagues to ensure that technological advancements improve outcomes and access to health care guided by novel technology. If you have any questions on our comments, please contact Sabra Rosener, VP, Government Affairs at [REDACTED]

Sincerely,